

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

EDWARD KOEHL,

**SUMMONS WITH
COMPLAINT [VERIFIED]**

Index Number

[your name(s)]

Plaintiff(s)

- against -

100060-19

Date Index Number purchased

CITY OF NEW YORK; M. PASCONE, Sh.#965400;

MESHEL, Sh.#975855; MAGLIO, Sh.#949735,

20

[name(s) of party being sued]

Defendant(s)

To the Person(s) Named as Defendant(s) above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint of the plaintiff(s) herein and to serve a copy of your answer on the plaintiff(s) at the address indicated below within 20 days after service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the Summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer, a judgment will be entered against you by default for the relief demanded in the complaint.

Dated: _____

[date of summons]

20.19

FILED

JAN 14 2019

COUNTY CLERK'S OFFICE
NEW YORK

X. _____
[sign your name]

EDWARD KOEHL

[print your name]

471 Ramona Avenue

Richmond, New York 10309

[347] 600-7703

[your address(es), telephone number(s)]

Defendant(s) _____

[address(es) of defendant(s)]

Venue: Plaintiff(s) designate(s) New York County as the place of trial. The basis of this designation

is: [check box that applies]

☐ Plaintiff(s) residence in

☒ Defendant(s) residence in

☐ Other [See CPLR Article 5]: _____

FOR THE GREAT STATE OF NEW YORK
SUPREME COURT : COUNTY OF NEW YORK

EDWARD KOEHL,

Plaintiff,

HON.

JUSTICE SUPREME COURT

- against -

INDEX No.:

THE CITY OF NEW YORK,
M. PASCONE, Shield #965400;
MESHEL, Shield #975855; and
MAGLIO, Shield #949735, all named
N.Y.P.D POLICE OFFICER'S.,
Defendants.

PLAINTIFF'S VERIFIED COMPLAINT UNDER
42 U.S.C.A. §1983; MONELL CLAIMS
NEGLIGENCE AND MENTAL ANXIETIES AS
WELL AS MENTAL ANGUISH.

Plaintiff, EDWARD KOEHL, complaining of defendant's, alleges
the following:

PARTIES

1. Plaintiff Edward Koehl, currently resides at
471 Ramona Avenue, Richmond, New York 10309.

2. The City of New York defendant, upon
information and belief, is a Municipal Corporation duly
organized and existing under and by virtue of the Laws
of the State of New York.

3. Defendant's M. Pascone, shield #965400;

1 Meshal, shield #975855; and Maglio, Shield #949735,
2 upon information and belief, are currently employed as
3 New York City Police Officer's, [a]ll assigned to the
4 123rd Precinct, located at 116 Main Street, Richmond,
5 New York 10307 [Tottenville section], at the time of
6 the incident stated hereinafter.
7

8 4. Notice of plaintiff's intention to sue herein
9 and the time when and the place where the herein
10 alleged injuries were received, were duly filed by the
11 plaintiff with the Comptroller's Office of defendant,
12 the City of New York, on or about the 23rd day of
13 August, 2018, and before the commencement of this
14 action, and assigned claim number 2018-PI-024841.
15

16 5. More than thirty (30) days have elapsed since
17 the presentation of the claim.
18

19 6. This action is now being commenced well within
20 the one (1) year and ninety (90) days after the cause
21 of action occurred.
22

23 7. The amount of damages sought in this action,
24 exceeds the jurisdictional limits of all lower Court's,
25 which would other wise have jurisdiction.
26

27 8. At all times herein mentioned, the incident so
28 complained of occurred at the cross streets of Huguenot
Avenue and Amboy Road, located in the County of

1 Richmond, State of New York, which plaintiff is a
2 resident of.

3
4 STATEMENT OF FACTS

5
6 9. On July 31, 2018, at about 5:50 p.m.,
7 plaintiff was driving home alone, in his friends 2007
8 Cheverlet van.

9 10. As plaintiff just passed Amboy Road, he was
10 pulled over by defendant's Pascone ("Pascone"), Meshel
11 ("Meshel"), and Maglio ("Maglio") in their marked
12 N.Y.P.D. radio motor patrol ("RMP") car.

13 11. Defendant Pascone and Meshel approached my
14 driver side window with Maglio on the passenger side of
15 the van.
16

17 12. Pascone asked me if I knew why I was stopped,
18 and plaintiff stated in sum "no."
19

20 13. Pascone then went on to say that it was
21 because plaintiff was on a cell phone while driving.

22 14. Plaintiff showed Pascone that the object in
23 his hand was not a cell phone, but was in fact a small
24 light¹ which he showed to both Pascone and Meshel.
25

26
27
28 ¹ Light switches that have batteries in them you can
put along a wall for a secondary light source,
without using house electricity. Sold at the Dollar
stores.

1 15. Pascone and Meshel came back to issue the
2 plaintiff a false/trumped up traffic ticket for being on
3 a cell phone.

4 16. Plaintiff continued to question Pascone and
5 Meshel on why he's being issued a traffic ticket, when
6 the plaintiff's cell phone was actually in the back of
7 the van.

8 17. While plaintiff was trying to understand why he
9 was getting a ticket for something he did not do, Maglio
10 without consent nor probable cause, opened the passenger
11 side of the van and began looking around and searching
12 the door pockets and under the seats.

13 18. Plaintiff then directed his attention to Maglio
14 and told him "what are you doing? I did not give you
15 permission to search the vehicle."

16 19. Maglio, then stated that "he [j]ust wanted to
17 talk to me." Plaintiff then asked if he had a warrant,
18 and he replied "no."

19 20. He then went on to say "If [I] want to, I can
20 drag you out of here."

21 21. Plaintiff immediately became afraid for his
22 life. Plaintiff actually believed he would be another
23 victim of the police, because he questioned their
24 authority, in regards to violating my State and Federal
25
26
27
28

1 Constitutional Rights.

2 22. Plaintiff could do nothing except watch Maglio
3 continue to violate my Fourth Amendment Rights.

4 23. Pascone and Meshel did not intervene nor stop
5 Maglio from searching the inside of the van without my
6 consent, search warrant, or any type of probable cause.
7 In sum, Pascone and Meshel [d]id nothing, to stop this
8 illegal conduct and violation Maglio was committing upon
9 the plaintiff.
10

11 24. This entire incident was captured and recorded
12 on their N.Y.P.D. body camera's, which the plaintiff has
13 given [advance] notice, for the City of New York
14 defendant's to preserve, as evidence.
15

16 25. Plaintiff (after the defendant's left the scene
17 in their RMP), went immediately to their assigned
18 precinct [123rd], to file a civilian complaint on what
19 had just occurred.
20

21 26. The complaint was taken by Officer A. Colon at
22 the 123rd precinct.

23 27. The plaintiff had to resubmit a fuller civilain
24 complaint, due to the fact that Officer Colon refused to
25 put the names of the other two defendant's. He only put
26 the name defendant M. Pascone.
27
28

1 AS FOR A FIRST SEPARATE CAUSE OF ACTION

2 42 U.S.C.A. §1983

3 VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT

4
5
6 28. Plaintiff repeats the averments contained in
7 paragraph(s) (1) through (27), as if fully stated herein.

8 29. Plaintiff's civil rights were violated by an
9 illegal search by defendant's Pascone, Meshel, and
10 Maglio, whom had [no] probable cause, consent, nor a
11 search warrant when the van plaintiff was driving was
12 illegally searched.

13
14 30. Plaintiff explicitly told defendant Maglio to
15 stop searching the van, but was met with a firm verbal
16 threat of "being [dragged] out the van, if he [Maglio]
17 wanted to."

18
19 31. The law on Fourth Amendment rights, were
20 clearly established at the time of the illegal search.

21 32. Plaintiff now suffers anxieties through panic
22 attacks, and is now seeing a psychologist now since the
23 incident.

24 33. Plaintiff has suffered mental anguish and
25 continues to suffer mental anguish every time he thinks
26 about the incident or see's a police officer giving some
27 one a ticket.
28

1 34. These defendant's basically [trampled] on the
2 plaintiff's civil rights by using fear, threats, and
3 intimidation to search the van illegally.

4 35. Plaintiff's right's were further violated upon
5 belief now, due to the defendant's learning after a
6 computer check, that plaintiff was on parole.

7 WHEREFORE, plaintiff EDWARD KOEHLS, demands judgment
8 against defendant's Pascone, Meshel, and Maglio, in an
9 amount to be determined upon the trial of this action,
10 together with the costs and disbursements of this action.

11 AS FOR A SECOND SEPARATE CAUSE OF ACTION

12 MONELL CLAIM

13 FAILURE TO PROPERLY TRAIN

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17 36. Plaintiff repeats the averments contained in
18 paragraph(s) (1) through (35), as if fully stated herein.

19 37. The City of New York defendant, failed to
20 properly train these defendant's, on the rights of those
21 in the general public.

22 38. The City of New York defendant, failed to
23 properly train these defendant's, on the proper Fourth
24 Amendment rights of those in the general public.

25 39. The City of New York defendant, failed to
26 properly train these defendant's, in Police intervention
27 techniques, when it comes to recognizing and stopping a
28

1 a fellow officer from either breaking the law or
2 violating a citizen's civil rights, which are in fact, a
3 protected said right, under the State and Federal
4 Constitution.

5
6 WHEREFORE, plaintiff EDWARD KOEHL, demands judgment
7 against defendant City of New York, in an amount to be
8 determined upon the trial of this action, together with
9 the costs and disbursements of this action.

10
11 AS FOR A THIRD SEPARATE FINAL CAUSE OF ACTION

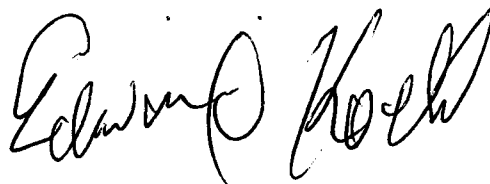
12 NEGLIGENCE

13
14 40. Plaintiff repeats the averments contained in
15 paragraph(s) (1) through (39), as if fully stated herein.

16
17 41. Defendant Maglio's conduct was negligent, to
18 wit, he caused this plaintiff to suffer fear, anxieties,
19 fright, and distress.

20 WHEREFORE, plaintiff EDWARD KOEHL, demands judgment
21 against defendant Maglio, in an amount to be determined
22 upon the trial of this action, together with the costs
23 and disbursements of this action.

24
25 Dated: 1/9/19, 20 19.
26 Richmond, New York



EDWARD KOEHL
Plaintiff, Pro-se.
471 Ramona Avenue
Richmond, New York 10309
[347] 600-7703

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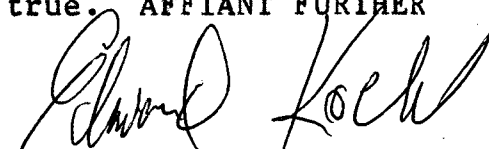
1 State of New York
2 County of New York

VERIFICATION

3
4 STATE OF NEW YORK }
5 COUNTY OF ~~RICHMOND~~ }

ss.:

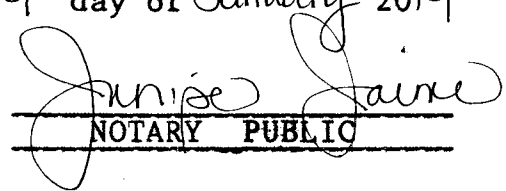
6
7 EDWARD KOEHL, being duly sworn, deposes
8 and says that deponent is the plaintiff in the above
9 captioned proceeding, that he has read the foregoing
10 verified complaint and knows its contents thereof, that
11 same is true to deponents own knowledge, except as to
12 matters therein stated upon information and belief, which
13 matters deponent believes to be true. AFFIANT FURTHER
14 SAYETH NAUGHT.


15 EDWARD KOEHL
16 Plaintiff, Pro-se.
17 471 Ramona Avenue
18 Richmond, New York 10309
19 [315] 600-7703

20 State of New York
21 County of New York

22 Sworn to before me this

23 9th day of January 2019

24 
25 NOTARY PUBLIC

26 **JUNISE JAIME**
27 Notary Public, State of New York
28 No. 04JA6325007
Qualified in New York County
Commission Expires May 18, 2019

INDEX No.:
STATE OF NEW YORK SUPREME COURT COUNTY OF NEW YORK
EDWARD KOEHL, Plaintiff, - against - CITY OF NEW YORK; M. PASONE, Sh.#965400; MESHEL, Sh.#975855; and MAGLIO, Sh.#949735., Defendant(s)
PLAINTIFF'S VERIFIED COMPLAINT UNDER 42 U.S.C.A 1983; MONELL CLAIMS; AND VARIOUS OTHER CLAIMS.
EDWARD KOEHL Plaintiff, Pro-se. 471 Ramona Avenue Richmond, N.Y. 10309

State of New York, County of

ss.:

being duly sworn, deposes and says; that deponent is not a party to the action, is over 18 years of age and resides at

That on the day of deponent served within

attorney (s) for
herein, at the attorney's office at

during the attorney's absence from said office

(a) by then and there leaving a true copy of the same with

the attorney's clerk; partner; person having charge of said office.

(b) and said office being closed, by depositing a true copy of same, enclosed in a sealed wrapper directed to said attorney (s), in the office letter drop box.

State of New York, County of

ss.:

being duly sworn, deposes and says; that deponent is not a party to the action, is over 18 years of age and resides at

That on the day of deponent served the within

attorney (s) for
at

the address designated by said attorney (s) for the purpose by depositing a true copy of same enclosed in a postpaid properly addressed wrapper, in-post office- official depository under the exclusive care and custody of the United States Postal Service within New York State.

VERIFICATION

STATE OF NEW YORK)

COUNTY OF

ss.:

, being duly sworn, deposes and says that deponent is the in the above captioned proceeding, that s/he has read the foregoing and knows its contents thereof, that same is true to deponent's own knowledge, except as to matters therein stated upon information and belief, which matters deponent believes to be true. AFFIANT FURTHER SAYETH NAUGHT.

Print name

SWORN TO BEFORE ME THIS

day of 20

NOTARY PUBLIC